

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before The Honorable Doris Johnson Hines
Administrative Law Judge**

In The Matter Of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' MOTION *IN LIMINE* NO. 2: TO PRECLUDE SAMSUNG
FROM SEEKING A BOND BASED ON LICENSING RATES**

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, Oura states that it made reasonable, good-faith efforts to resolve the matter with Samsung prior to filing the Motion. Samsung has indicated that it opposes this motion and agrees that the parties are at an impasse.

I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (“Respondents”) respectfully move to preclude Complainants Samsung Electronics Co., Ltd., and Samsung Electronics America, Inc. (“Samsung”) from presenting any evidence, argument, or testimony relating to the appropriate bond rate to be entered during the Presidential Review Period if a violation is found. Samsung presented just one theory in its prehearing brief for bonding, which adopts a bond rate proposed by Ouraring Inc. in a separate investigation. This theory is improper: First, it is based on licenses to patents that are not asserted in this Investigation and owned by Ouraring Inc., not Samsung. Second, despite knowing about these licenses for several months, Samsung did not disclose this theory in its contentions but instead raised it for the first time in its prehearing brief. Accordingly, Samsung should be precluded from seeking a bond based on its irrelevant and untimely contentions. And because Samsung raised no other theory for setting a bond, Samsung should be precluded from seeking any bond at all.

II. BACKGROUND

In a separate investigation, Inv. No. 1468, which Ouraring Inc. (“Oura”) filed a few months before Samsung filed a complaint in this Investigation, Oura contended that certain licenses to its asserted patents (“Oura Licenses”) supported a reasonable royalty rate for a bond against Samsung’s importation of its Galaxy smart rings. *See* Oura Prehearing Br. at 422 (EDIS ID 884964) (discussing agreements CX-633C, CX-634C, and CX-635C, which correspond to Samsung’s exhibits in this investigation CX-1698C, CX-1699C, and CX-1700C). These licenses and Oura’s intention to rely on them were disclosed as early as Oura’s February 9, 2026, interrogatory responses. Ex. A at 38-39.

In the present investigation, Samsung's discovery contentions appeared to disclose two theories for a bond against the Oura Respondents. Ex. B at 25-27. First, a sales price differential that "its expert" would "calculate." *Id.* at 26. Samsung's expert did not present a sales differential calculation, and so has waived that theory. Ex. C (Rowe) 97:12-15. Second, a reasonable royalty rate based on [REDACTED] that "its expert" would "calculate." Ex. B at 26. Samsung's expert did not present an opinion on Samsung's licenses, waiving that theory as well. Ex. C (Rowe) 97:12-15. Samsung did not contend that a 100 percent bond was appropriate in this case but stated, "If the record establishes that it would be difficult to reliably calculate the price differential or determine a reasonable royalty rate, the Commission may impose a 100 percent bond." Ex. B at 27.

Samsung's prehearing brief raised a single theory for bonding: "[T]o the extent the ALJ in [the 1468] Investigation recommends and the Commission adopts Oura's proposed [royalty] rate as the established rate associated with the Oura Ring products, that rate should apply in this Investigation to the Galaxy Ring product as well." CPreHB at 334 (EDIS ID 891086). In sum, Samsung proposed that a bond rate should be entered in this investigation equal to the bond rate the Commission adopts in the separate 1468 Investigation, if the Commission adopts a bond based on the Oura Licenses.

III. ARGUMENT

A. Oura's Licensing Rates Cannot Establish a Bond for Samsung's Rings

Licenses to asserted patents can be helpful to show bond, but they must show the value of the *asserted* patents. *See, e.g., Certain Digital Video Receivers & Hardware & Software Components Thereof*, Inv. No. 337-TA-1001, Comm'n Op. at 47 (Dec. 6, 2017) (EDIS ID 630893) (rejecting proposed bond because complainant failed to show it "reflects the reasonable royalty relevant to the asserted patents"); *Certain Radio Frequency Identification Products & Components*

Thereof, Inv. No. 337-TA-979, ID at 296 (June 22, 2017) (EDIS ID 617937) (rejecting bond based on royalty rates where there was no “analysis or valuation with respect to the Asserted Patents, or how the patents [] analyzed were related” to the agreements).

Samsung argues in its prehearing brief that the rate the Commission adopts in the 1468 investigation “should apply in this Investigation to the Galaxy Ring product as well,” but provides absolutely no rationale. CPreHB at 334. Samsung further presents no evidence or expert opinion that the Oura Licenses have any relevance to the value of Samsung’s patents for the purpose of bond. Nor could Samsung do so at the hearing. Respondents’ economic expert, Mr. Jarosz, opined on those licenses in the 1468 investigation, but in the context of Oura’s patents and a bond that could approximate compensation for Samsung’s infringement of those patents. *See* CPreHB at 334. He did not opine on those licenses in the context of bond in this investigation, nor does Samsung claim he did. Samsung included the Oura Licenses (CX-1698C, CX-1699C, and CX-1700C) on its exhibit list with its accounting expert Ms. Rowe listed as the sponsoring witness. Ex. D. But Ms. Rowe’s report does not cite them or present any opinion on bond. Ex. C (Rowe) 97:12-15. Accordingly, she cannot discuss them at the hearing. G.R. 13.6.6; *Certain Infotainment Systems, Components Thereof, and Automobiles Containing the Same*, Inv. No. 337-TA-1119, Order No. 34 at 3 (May 29, 2019) (EDIS Doc. ID 678334) (“Expert testimony will generally only be stricken if it is based on a theory...wholly outside the scope of the previously disclosed contentions....”).

In sum, Samsung has made no showing that the Oura Licenses are relevant here, and their use by Samsung should be precluded. The Commission has a statutory imperative to assess whether a complainant’s claim for a bond amount is appropriate. 19 U.S.C. § 1337(j)(3). Samsung

cannot meet that burden by offering to take whatever bond the Commission accepts for different patents in a different investigation.

B. Samsung's New Bond Theory Is Untimely and Should Be Struck

Samsung had not identified a bond based on any licensing rate, much less Oura's licensing rates, in its contentions or at any point in this investigation until its prehearing brief. Because Samsung did not disclose this theory in its contentions, it should be precluded from arguing it now. Samsung had a full and fair opportunity to disclose a theory around the Oura Licenses at least as of February 9 of this year, when Oura identified them as a basis for a bond related to *its* patents in the 1468 investigation. But Samsung did not.

Samsung's untimely disclosure is prejudicial to Oura, at least because it deprived Oura the opportunity during discovery to probe the basis for Samsung's contentions, including whether the Oura Licenses for its patents are in any way relevant to a bond related to Samsung's patents. Oura also did not have the opportunity to seek an expert opinion on the relationship between Oura's patents asserted in 1468 investigation and Samsung's patents asserted here. Even Samsung's contention in its prehearing brief is too conclusory to provide fair notice to Oura of its intended argument for the alleged relevance of the Oura Licenses. CPreHB at 334.

C. Samsung Has No Basis to Seek a Bond

Samsung presented only one, belated, bond theory—the theory based on the Oura Licenses—in its prehearing brief. Accordingly, Samsung has waived any other bond theory. G.R. 11.2. Because the sole theory Samsung preserved is improper and should be struck, as set out above, Samsung has no basis to argue that a bond of any amount should be entered and cannot satisfy its burden. *Certain Cameras, Camera Systems, & Accessories Used Therewith*, Inv. No. 337-TA-1400, Comm'n Op. at 41 (Mar. 12, 2026) (EDIS ID 875338) (“The complainant bears the burden of establishing the need for a bond.”). Accordingly, Samsung should be precluded from

seeking any evidence at the hearing on bonding and from making any argument about bonding in its post-hearing briefs. *Certain Women's Flats with Colored Outsoles Thereof*, Inv. No. 337-TA-1428, ID at 41 (July 23, 2025) (EDIS ID 858121) (“A bond is not an automatic remedy.”).

V. CONCLUSION

For the foregoing reasons, Respondents respectfully request that Samsung be precluded from presenting arguments, submitting evidence, or eliciting any testimony about bonding, including but not limited to bonding based on Oura's licensing rates or practices.

Dated: August 24, 2026

Respectfully submitted,

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Exhibit A

REDACTED IN
ENTIRETY

Exhibit B

REDACTED IN
ENTIRETY

Exhibit C

REDACTED IN
ENTIRETY

Exhibit D

ITC Investigation No. 337-TA-1478
Complainants Second Amended Trial Exhibit List

Exhibit No.	Conf.	Date	Description	Begin Bates	End Bates	Purpose	Sponsoring Witness
CX-1685C	CBI			SAMS406-SC-0000001	SAMS406-SC-0000385	Technical DI	Welch
CX-1686C	CBI			OURA 1468 SC 0000001	OURA 1468 SC 0000407	Infringement	Welch
CX-1687						Infringement	Warren
CX-1688						Infringement	Warren
CX-1689						Infringement	Warren
CX-1690C	CBI	02/12/2026				Infringement	Warren
CX-1691						Infringement	Warren
CX-1692						Infringement	Warren
CX-1693						Validity	Warren
CX-1694C	CBI			OURA1478 00014812	OURA1478 00014859	Infringement, Validity	Warren, Welch
CX-1695C	CBI	03/27/2026				Economic DI	Rowe
CX-1696C	CBI	05/15/2026				Economic DI	Rowe
CX-1697C	CBI	04/10/2026				Economic DI	Rowe
CX-1698C	CBI	06/24/2024		OURA1468 00000001	OURA1468 00000021	Economic DI	Rowe
CX-1699C	CBI	10/06/2025		OURA1468 00000022	OURA1468 00000034	Economic DI	Rowe
CX-1700C	CBI	10/20/2025		OURA1468 00000035	OURA1468 00000048	Economic DI	Rowe
CX-1701C	CBI			SAMS382-0011282	SAMS382-0011282	Economic DI	Rowe
CX-1702C	CBI			SAMS382-0011283	SAMS382-0011283	Economic DI	Rowe
CX-1703C	CBI			SAMS382-0011284	SAMS382-0011284	Economic DI	Rowe
CX-1704C	CBI			SAMS382-0026452	SAMS382-0026452	Economic DI	Rowe
CX-1705C	CBI			SAMS382-0026453	SAMS382-0026453	Economic DI	Rowe
CX-1706C	CBI			SAMS382-0027559	SAMS382-0027559	Economic DI	Rowe
CX-1707C	CBI	07/01/2025		SAMS382-0028070	SAMS382-0028070	Economic DI	Rowe
CX-1708C	CBI			SAMS382-0035202	SAMS382-0035202	Economic DI	Rowe
CX-1709C	CBI			SAMS382-0043997	SAMS382-0043997	Economic DI	Rowe
CX-1710C	CBI	03/13/2026				Infringement	Welch
CX-1711C	CBI	03/25/2026				Infringement	Warren
CX-1712C	CBI			OURA1478 00013076	OURA1478 00013076	Infringement	Welch, Warren
CX-1713C	CBI			OURA1478 00013077	OURA1478 00013077	Infringement	Welch, Warren
CX-1714C	CBI			OURA1478 00013078	OURA1478 00013078	Infringement	Welch, Warren
CX-1715C	CBI			OURA1478 00013079	OURA1478 00013079	Infringement	Welch, Warren
CX-1716C	CBI			OURA1478 00013080	OURA1478 00013080	Infringement	Welch, Warren
CX-1717C	CBI			OURA1478 00013081	OURA1478 00013081	Infringement	Welch, Warren
CX-1718C	CBI			OURA1478 00013082	OURA1478 00013082	Infringement	Welch, Warren
CX-1719C	CBI			OURA1478 00013083	OURA1478 00013083	Infringement	Welch, Warren
CX-1720C	CBI			OURA1478 00013084	OURA1478 00013084	Infringement	Welch, Warren
CX-1721C	CBI			OURA1478 00013085	OURA1478 00013085	Infringement	Welch, Warren
CX-1722C	CBI			OURA1478 00013086	OURA1478 00013086	Infringement	Welch, Warren
CX-1723C	CBI			OURA1478 00013087	OURA1478 00013087	Infringement	Welch, Warren
CX-1724C	CBI			OURA1478 00013088	OURA1478 00013088	Infringement	Welch, Warren
CX-1725C	CBI			OURA1478 00013089	OURA1478 00013089	Infringement	Welch, Warren
CX-1726C	CBI			OURA1478 00013090	OURA1478 00013090	Infringement	Welch, Warren
CX-1727C	CBI			OURA1478 00013091	OURA1478 00013091	Infringement	Welch, Warren
CX-1728C	CBI			OURA1478 00013092	OURA1478 00013092	Infringement	Welch, Warren
CX-1729C	CBI			OURA1478 00013093	OURA1478 00013093	Infringement	Welch, Warren
CX-1730C	CBI			OURA1478 00013094	OURA1478 00013094	Infringement	Welch, Warren
CX-1731C	CBI			OURA1478 00013095	OURA1478 00013095	Infringement	Welch, Warren
CX-1732C	CBI			OURA1478 00013096	OURA1478 00013096	Infringement	Welch, Warren
CX-1733C	CBI			OURA1478 00013097	OURA1478 00013097	Infringement	Welch, Warren
CX-1734C	CBI			OURA1478 00013098	OURA1478 00013098	Infringement	Welch, Warren
CX-1735C	CBI			OURA1478 00013099	OURA1478 00013099	Infringement	Welch, Warren
CX-1736C	CBI			OURA1478 00013100	OURA1478 00013100	Infringement	Welch, Warren
CX-1737C	CBI			OURA1478 00013101	OURA1478 00013101	Infringement	Welch, Warren
CX-1738C	CBI			OURA1478 00013102	OURA1478 00013102	Infringement	Welch, Warren
CX-1739C	CBI			OURA1478 00013103	OURA1478 00013103	Infringement	Welch, Warren
CX-1740C	CBI			OURA1478 00013104	OURA1478 00013104	Infringement	Welch, Warren
CX-1741C	CBI			OURA1478 00013105	OURA1478 00013105	Infringement	Welch, Warren
CX-1742C	CBI			OURA1478 00013106	OURA1478 00013106	Infringement	Welch, Warren
CX-1743C	CBI			OURA1478 00013107	OURA1478 00013107	Infringement	Welch, Warren
CX-1744C	CBI			OURA1478 00013108	OURA1478 00013108	Infringement	Welch, Warren
CX-1745C	CBI			OURA1478 00013109	OURA1478 00013109	Infringement	Welch, Warren
CX-1746C	CBI			OURA1478 00013110	OURA1478 00013110	Infringement	Welch, Warren
CX-1747C	CBI			OURA1478 00013111	OURA1478 00013111	Infringement	Welch, Warren

Certain Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' MOTION IN LIMINE NO. 2: TO PRECLUDE SAMSUNG FROM SEEKING A BOND BASED ON LICENSING RATES** was served upon the following as indicated below on August 24, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
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/s/ Jasjit S. Vidwan

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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' MOTION *IN LIMINE* NO. 2: TO PRECLUDE SAMSUNG FROM SEEKING A BOND BASED ON LICENSING RATES** was served upon the following as indicated below on August 31, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
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